

**IN THE 31ST JUDICIAL CIRCUIT OF GREENE COUNTY, MISSOURI
CIRCUIT CIVIL DIVISION**

NSI, A.1, LLC,

Plaintiff,

v.

CITY OF SPRINGFIELD, MISSOURI,

Defendant.

Case No. _____

VERIFIED PETITION FOR DECLARATORY AND INJUNCTIVE RELIEF
NATURE OF THE ACTION

1. This action presents a narrow facial challenge to the validity of City of Springfield Special Ordinance 28306, which immediately suspended the City's and its Board of Public Utilities' acceptance and processing of applications for a specifically defined land use through November 17, 2026.

2. Although the City characterizes Ordinance 28306 as an exercise of general police power and an 'administrative delay,' the ordinance operates in substance as interim zoning: it identifies a land use, defines when that use is 'primary,' and disables the ordinary land-development, site-plan, building-permit, stormwater, occupancy, variance, utility, and electric-service review processes for that use throughout the City.

3. Missouri's zoning enabling act requires a public hearing preceded by at least fifteen days' published notice before a zoning regulation or restriction becomes effective and applies the same protections to later amendments, supplements, changes, modifications, or repeals under §§ 89.050–.060, RSMo.

4. The public legislative file presently available to Plaintiff does not reflect that the City enacted Ordinance 28306 through the notice, hearing, planning-commission, and report

procedures required by Chapter 89 and the City's Land Development Code for zoning legislation.

5. The City's published final enactment presents a second facial defect because it is headed and repeatedly described as an ordinance, substitutes 'BE IT RESOLVED' for the exact enacting clause required by Charter § 2.12, and was officially 'Filed as Resolution' notwithstanding Charter § 2.16's requirement that the relevant powers be exercised by ordinance.

6. NSI, A.1 also seeks enforcement of Public Records Request No. R025670-062426 because the City quoted a charge for core electronic records, received NSI, A.1's acceptance and request for immediate payment instructions, and then supplied neither an invoice or payment method nor the remaining records, explanation, or production date.

7. Plaintiff does not ask the Court to approve a project, guarantee utility service, override any otherwise-applicable development standard, or decide in the first instance whether a complete project application satisfies every requirement of Planned Development District No. 251 ('PD 251').

8. Plaintiff asks only that the City not enforce a void zoning moratorium to refuse acceptance and ordinary processing of complete submissions under the law otherwise in force.

9. In the alternative, if Ordinance 28306 is upheld, NSI, A.1 seeks a declaration concerning its application to the City-directed predevelopment process and equitable protection against the City's use of inconsistent representations and classifications to foreclose ordinary review.

10. These Project-specific grounds are pleaded alternatively under Rule 55.10 and supplement the facial and Sunshine claims.

PARTIES

11. Plaintiff NSI, A.1, LLC ('NSI A1') is a limited liability company that has served as the applicant and project sponsor for a proposed office and digital infrastructure project at 2900 South National Avenue in Springfield, Greene County, Missouri (the 'Project'), including in City predevelopment matter PREDEV2026-00192.

12. Defendant City of Springfield, Missouri (the 'City'), is a constitutional-charter municipal corporation situated in Greene County, Missouri.

13. The City enacted Ordinance 28306 and has announced that it will not accept an application it classifies as a "data-center" application while the ordinance remains in effect.

JURISDICTION AND VENUE

14. This Court has jurisdiction under article V, section 14 of the Missouri Constitution, Missouri's Declaratory Judgment Act, §§ 527.010–.020, RSMo, and Rule 87 to declare the parties' rights and the validity of a municipal enactment.

15. An actual, present controversy exists because Ordinance 28306 prohibits the acceptance or processing of applications that NSI A1 intends to submit for the Project, the City has publicly confirmed that no such application may be filed during the pause, and the City has directed that the Project's electric-service submission cannot be processed before November 17, 2026 absent relief.

16. Venue is mandatory and proper in Greene County under § 508.050, RSMo, because the City is situated in Greene County and the affected property is located there.

17. This Court also has jurisdiction under §§ 610.027.1 and 610.030, RSMo, to declare and enforce NSI A1's rights under Missouri's Sunshine Law.

PD 251 And The Project

18. The property at 2900 South National Avenue is presently governed by PD 251.
19. The City's current zoning records continue to identify the property as PD 251.
20. PD 251 expressly permits 'Administrative and Professional Offices.'
21. Within that category, PD 251 identifies 'data processing services' and 'corporate offices' as typical uses.
22. PD 251 also contains dimensional, gross-floor-area, indoor-activity, parking, and final-development-plan requirements that remain subject to ordinary administrative review.
23. NSI A1 presented the Project as an integrated office and digital infrastructure project in which headquarters and office functions are the principal use of active building area and the computing component occupies less than one-half of active building area.
24. In a written March 5, 2026 communication, after consulting an assistant director, City planning staff stated that it had 'confirmed that the PD would permit the use you described.'
25. The later PREDEV2026-00192 planning summary likewise stated that the proposed use of 'mixed-use office' appeared permitted based on the submitted layout because office space exceeded fifty percent and the computing area was under fifty percent, subject to reevaluation if that configuration changed.
26. Those staff communications are relevant to NSI A1's reliance, concrete interest, and reason for seeking ordinary processing.
27. NSI A1 does not allege that the informal PREDEV process itself issued a permit or vested a final entitlement.
28. The phrase 'mixed-use office' describes the layout presented to staff and is neither a request for C-MX2 rezoning nor the source of the asserted existing use authorization.

29. NSI A1's asserted source is PD 251's permitted 'Administrative and Professional Offices' category, which expressly lists data processing services and corporate offices.

30. The Project's anticipated electrical demand exceeds five megawatts.

31. Because Ordinance 28306 uses three alternative tests, the ordinance allegedly reaches the Project under its electrical-demand criterion even if office use exceeds fifty percent of active building area.

32. That moratorium-specific criterion does not itself resolve the Project's permitted-use classification under PD 251.

33. NSI A1 therefore does not contend that an 'accessory' label or floor-area allocation alone exempts the Project from Ordinance 28306.

The City Required And Documented Predevelopment Review

34. On May 26, 2026, the City acknowledged receipt of the "Pre-Application Review application" for PREDEV2026-00192 at 2900 South National Avenue and stated that staff would review it and schedule a meeting.

35. The acknowledgment described the review as a no-cost opportunity to identify requirements, design standards, alternatives, permits, and approvals before proceeding with permits or formal applications.

36. It invited detailed supporting plans and participation by professional design consultants and prescribed a submission deadline and scheduling sequence.

37. On June 1, 2026, the City issued a notice scheduling the Project's pre-application meeting for June 10, 2026, at 9:20 a.m., identifying the property and planning case number.

38. On June 2, 2026, City Utilities' Josh Casey informed Trent Overhue that predevelopment was a "free but mandatory process for any new land development project in the city."

39. Casey explained that City departments and City Utilities would identify critical issues before full design and construction documents were prepared for permit review.

40. He copied the responsible City planning officials and requested concept plans and a narrative of the intended use.

41. In the underlying May 24 e-mail, Overhue reported that significant engineering and design work for the internal load had already begun and requested further coordination with the City and City Utilities.

42. That report predates the June 2 direction and follows the March 5 written use confirmation; NSI A1 relies only on expenditures and procedural decisions actually attributable to the relevant earlier representations.

43. The resulting PreDevelopment Review Summary contains identified departmental reviewers and Project-specific comments concerning the office and computing floor plan, electric capacity up to 10 MW, distribution improvements at the developer's expense, special utility policies, fire protection, stormwater, and later submission requirements.

44. These records establish organized application intake and substantive preliminary review before Ordinance 28306 was enacted.

45. The preliminary character of the recommendations did not eliminate the assigned case, staff review, required sequence, or NSI A1's participation in that process.

46. The same review summary expressly reserved changes to preliminary comments, including changes resulting from new regulations, and stated that the comments were not a complete or final review.

47. The City's June 30 letter also asserted that the February and March e-mails did not disclose the full scope later revealed by the May submissions.

48. NSI A1 does not allege that those reservations disappeared or that an early assurance approved undisclosed technical features.

49. NSI A1 alleges reliance on the March 5 confirmation of the described use, the later review of the disclosed Project, and the City's directions concerning how review must proceed.

50. It seeks protection of access to that process, with any material changes and remaining legal requirements addressed through an ordinary, reviewable determination.

Ordinance 28306

51. Council Bill 2026-147 was filed on June 16, 2026, received a first reading on June 22, 2026, and was passed on June 29, 2026 as Special Ordinance 28306.

52. The ordinance states that it became effective immediately and that the administrative delay ends November 17, 2026.

53. Section 2 prohibits the City and its Board of Public Utilities from accepting or processing applications concerning the 'evaluation, establishment, servicing, or expansion' of a use the ordinance defines as a "data center."

54. Its nonexclusive list reaches building permits, site-plan and architectural review, variances, stormwater permits, conditional-use permits, certificates of occupancy, utilities, and large-load electric-service applications.

55. Section 4 declares digital-data functions a primary use if the covered equipment meets any one of three criteria: expected peak demand exceeds five megawatts; consumption is at least fifty percent of development electricity; or the floor-area calculation reaches fifty percent under the allocation rules stated in Section 4(c).

56. Section 4 expressly includes ‘High Performance Data Processing Facilities.’

57. The five-megawatt criterion is an alternative threshold, so Section 4 does not categorically exclude smaller office developments whose supporting digital equipment satisfies the separate electricity-consumption or floor-area test.

58. An ordinary office development with a small supporting server room could satisfy the electricity-consumption test if the covered equipment accounts for at least fifty percent of the development’s electricity, even where its demand remains below five megawatts.

59. Section 4(b) specifies no express measurement period or direction concerning actual versus projected electricity consumption.

60. Section 4 uses the terms building, group of buildings, facility, premise, and development without expressly resolving the unit of measurement for shared or multitenant premises.

61. Section 4(c) directs that vacant and warehouse or storage space be allocated to the computing portion, even though that space need not contain computing equipment.

62. These features concern the reach and administration of the ordinance’s special definition and do not establish that every office server room is covered or that an existing server room’s operation is itself prohibited by Section 2.

63. Section 2 separately permits limited continuation of a large-load application where SPP studies have begun and fees have been submitted to the Board of Public Utilities with that application, solely to the extent necessary to fulfill SPP requirements for those studies.

64. Section 2 contains no general exception for every predevelopment submission, prior zoning assurance, or privately funded planning expenditure.

65. The present predevelopment record does not establish that SPP had begun the required studies or that the required fees and large-load application had been submitted.

66. NSI A1 therefore seeks a determination of the scope of Section 2 as applied to its preliminary review requests and the alternative equitable relief pleaded below.

67. It does not allege that the free mandatory predevelopment process, standing alone, satisfies the distinct SPP-study exception.

68. Section 5 allows the City Council, in its ‘sole discretion,’ to permit application processing by resolution if specified regulatory, infrastructure, and public-welfare criteria are satisfied.

69. Section 5 requires compliance with “all existing and foreseeable planned city regulations” but does not identify the particular contemplated regulations that govern consideration of an application during the pause.

70. NSI A1 requested limited Section 5 relief on or about August 17, 2026 so that the City could accept and evaluate submissions without committing to project approval.

71. As of September 11, 2026, the City had not granted that request.

72. On July 24, 2026, City Utilities communicated that, because of Ordinance 28306, it could not process the Project’s electric-service application identifying anticipated demand of approximately 9.9 megawatts before November 17, 2026.

73. On September 9, 2026, the City publicly stated that the June predevelopment meeting was informal, that “[n]o application followed,” and that no application it classified as a “data-center” application could be filed during the pause.

74. The City further announced its position that a use it characterizes as a “data center” is not allowed under PD 251, a separately proposed C-MX2 rezoning, or anywhere in the City absent a code amendment.

75. The City’s September statement confirms that the ordinance is presently affecting NSI A1: the City will not even receive the submissions necessary to create an administrative record, obtain a written application-level determination, pursue any available administrative appeal, or obtain ordinary utility and infrastructure review.

76. The City’s published final enactment bears the headings ‘SPECIAL ORDINANCE 28306’ and ‘AN ORDINANCE,’ and Sections 2 and 6 likewise call the measure an ordinance.

77. Its operative clause nevertheless states, ‘NOW, THEREFORE, BE IT RESOLVED BY THE COUNCIL OF THE CITY OF SPRINGFIELD, MISSOURI,’ rather than the enacting clause prescribed by Charter § 2.12.

78. Its signature page independently states, ‘Filed as Resolution: June 29, 2026,’ while Section 5 uses the distinct phrase ‘by resolution’ for case-specific permission to process an individual application.

The Represented Predevelopment Path Did Not Restore Project Review

79. On July 21, 2026, the City advised that predevelopment review was the best mechanism for NSI A1 to continue work during the administrative delay and to develop a record for possible Section 5 relief.

80. The City further represented that City and City Utilities staff could continue communicating through predevelopment and that the City would evaluate office, interior, life-safety, and related items submission by submission when it classified those items as outside the moratorium's "data-center" category.

81. On July 24, 2026, City Utilities instead advised NSI A1 that it could not accept or process applications it classified as related to "data centers," including in-progress applications, until November 17, 2026 and could provide only general, non-application-related guidance.

82. On July 27, 2026, NSI A1 requested project-specific evaluation of electrical capacity, infrastructure, phasing, preliminary cost, and next steps, but City Utilities responded on August 5 that it had provided all necessary input to the predevelopment process and directed NSI A1 to seek a Council exception for further work.

83. NSI A1 sought practical clarification and a meet-and-confer on July 31, tendered a narrowly limited Section 5 resolution request on August 17, and followed up on August 31 after receiving no response.

84. A September 2 call produced only a proposed September 29 or 30 staff conference and no confirmation of Council agenda placement, resumed project-specific utility review, or another functioning path for the promised predevelopment work.

85. As of filing, the represented predevelopment route had therefore not produced the project-specific utility, infrastructure, or technical review needed either for ordinary development work or for a meaningful Section 5 presentation.

Chapter 89 Procedures Were Required

86. A municipal enactment is evaluated by its substance and effect, not by its caption, code placement, or invocation of police power.

87. The analogous pleading principle is recognized in *Worley v. Worley*, 19 S.W.3d 127 (Mo. banc 2000), which evaluates a pleading by its subject matter rather than its caption.

88. Indeed, *Worley* concerns pleadings; however, the spirit of *Worley* aligns with the municipal land-use authorities governing the classification of this enactment.

89. A use-specific restriction that suspends or limits previously available land-development procedures is zoning in substance when it regulates the use and development of land.

90. Ordinance 28306 does more than regulate the manner in which an operating facility addresses noise, fire, water, or another generally applicable nuisance concern.

91. It temporarily forecloses all application intake and processing for an identified land use, including review under existing zoning and development standards.

92. The ordinance therefore acts as interim zoning.

93. Missouri has required interim or temporary zoning measures to comply with the zoning enabling act.

94. Section 89.050 provides that no zoning regulation or restriction becomes effective until after a public hearing at which interested parties and citizens may be heard, with at least fifteen days' published notice of the hearing.

95. Section 89.060 extends the same protections to amendments, supplements, changes, modifications, and repeals.

96. Based on the public legislative record available after reasonable inquiry, Ordinance 28306 was not referred to or reported by the Planning and Zoning Commission as zoning legislation and was not preceded by a Chapter 89 public hearing for which at least fifteen days' notice was published in an official newspaper or newspaper of general circulation.

97. Failure to comply strictly with mandatory Chapter 89 enactment procedures renders zoning legislation void.

98. A pure facial challenge to that enactment failure does not depend on application-level factfinding and does not require exhaustion of an administrative remedy that cannot validate a void ordinance.

The Charter Required An Ordinance

99. Springfield is governed and controlled by its Charter, which is the City's organic law and expresses the governmental form chosen by Springfield's citizens.

100. Charter § 2.4 separately recognizes ordinances, resolutions, and motions, while Charter § 2.9 requires the City Clerk to authenticate ordinances and resolutions as distinct forms of Council action.

101. Charter § 2.12 commands that, whenever the Council acts by ordinance, 'the following procedure shall be used,' that '[e]very ordinance shall be by bill,' and that 'the enacting clause shall be "BE IT ORDAINED BY THE COUNCIL OF THE CITY OF SPRINGFIELD."'

102. Charter § 2.16 authorizes the Council 'by ordinance' to furnish public services and operate public utilities under subsection, adopt police, health, and safety regulations under subsection, impose zoning regulations and restrictions under subsection, and exercise legislative power generally under subsection.

103. Ordinance 28306 prescribes a new, prospective, and generally applicable rule by defining a regulated class of uses as “data centers” and suspending the acceptance and processing of enumerated development and utility applications throughout the City.

104. Because Ordinance 28306 creates new policy rather than merely carrying out policy already adopted, its enactment is legislative.

105. Under Missouri law, a resolution is not law and cannot substitute for an ordinance when municipal action must be taken by ordinance.

106. If the measure is treated according to its operative clause and filing notation as a resolution, it cannot exercise the legislative, zoning, police-power, or utility authority that Charter § 2.16 confers upon the Council by ordinance.

107. If the measure is treated according to its heading and effect as an ordinance, it omits the exact enacting clause that Charter § 2.12 commands every ordinance to contain.

108. Missouri has invalidated zoning action taken by motion under materially parallel charter provisions that conferred zoning power by ordinance and prescribed the ordinance’s enacting clause.

109. Ordinance 28306, on its face, and via the substance-over-label rule establishes noncompliance with the express enacting-clause requisite imposed by Charter § 2.12.

110. The defects are not an isolated caption or clerical irregularity because the measure substitutes ‘BE IT RESOLVED’ for the Charter’s exact operative words, was officially filed as a resolution, and uses the distinct phrase ‘by resolution’ for the case-specific relief authorized in Section 5.

111. The substance-over-caption principle does not excuse compliance with mandatory enactment procedures.

112. The Chapter 89 claim concerns the measure's regulatory effect, while this Charter claim concerns the legally required method for giving that measure force.

The Sunshine Request Remains Materially Incomplete

113. On June 24, 2026, NSI A1, submitted Public Records Request No. R025670-062426 under Chapter 610, RSMo, seeking records from January 1, 2026 through production concerning the Project, PREDEV2026-00192, PD 251, Ordinance 28306, the moratorium, and the City's related legislative and administrative activity.

114. The Request expressly encompassed City e-mail, text, Teams, chat, calendar, meeting, draft, agenda, minutes, vote, attendance, recording, legal-authority, internal and external communication, project-review, and City Utilities records.

115. The Request asked for rolling electronic production, native files where available, a statutory basis for any withholding, prompt contact if clarification were required, an estimate before charges exceeded \$250.00, and preservation of responsive records.

116. On June 29, 2026, the City stated that Building Development Services had no responsive records, provided Development Review material from the Planning Department, reported that additional departments remained in initial review, and promised another update on or about July 2, 2026.

117. On July 2, 2026, the City supplied a limited Public Information Office production, advised that Information Systems required six hours at \$71.33 per hour for a total charge of \$427.98 and a deposit of \$213.99 to search e-mail, Teams, and calendar records, and stated that one unnamed department remained under review.

118. The July 2 communication stated no earliest production date for the Information Systems or remaining-department records and, although it invited NSI A1 to arrange payment,

supplied no invoice or payment mechanism and omitted the withdrawal notice prescribed by § 610.026.2(2).

119. On July 9, 2026, NSI A1 accepted the quoted charge and asked the City to advise how payment could be made as soon as possible.

120. As of September 11, 2026, sixty-four days after that acceptance, the City had provided no response, invoice, payment mechanism, further production, detailed explanation for continued delay, new earliest production date, or final disposition of the Request.

121. On September 11, 2026, the City's GovQA portal listed the Request as 'Requester Responded,' showed a balance due of \$0.00 and payments of \$0.00, and displayed no invoice.

122. The City's partial production consisted of fifteen files and did not include the requested e-mail, Teams, calendar, meeting-notice, agenda, minutes, vote, final enacted ordinance, or other core decision-making records concerning the moratorium.

123. As captured on September 11, 2026, the City's publicly available CityView Council-meeting archive omitted the June 29 special meeting at which Ordinance 28306 was passed, increasing the materiality of the requested official meeting records.

124. The City has not identified any request category as denied, invoked any statutory exemption, or supplied the requested statutory basis for withholding any responsive record.

125. The City's continuing nonproduction has maintained an information asymmetry of the City's own making concerning the rationale, enactment, communications, and implementation underlying the challenged moratorium.

Present And Irreparable Injury

126. Before the City changed course, NSI A1 proceeded through predevelopment review and incurred substantial planning, design, professional, and project-development expense in reliance on PD 251's text and City staff communications.

127. Ordinance 28306 now denies NSI A1 access to the ordinary application process during a short and commercially significant development window.

128. It prevents creation of the administrative record needed to test the City's later interpretation of PD 251 and prevents timely utility, infrastructure, site, and code evaluation.

129. The lost opportunity to obtain and sequence time-sensitive governmental reviews, and the resulting impairment of project scheduling, counterparties, and utility planning, cannot be fully restored by a later damages award.

130. The ordinance's approaching expiration also threatens to consume the period in which meaningful interlocutory relief can be obtained.

131. The requested relief preserves lawful processes rather than predetermining their results.

132. The City may apply every otherwise-valid land-development, building, safety, environmental, and utility standard; require complete submissions and fees; and approve, condition, or deny applications through ordinary procedures.

133. The City's represented predevelopment path has not mitigated that injury because it produced neither resumed project-specific processing nor the utility and technical information needed to pursue the City's discretionary Section 5 route.

134. The scheduled November 17 expiration is not the same relief as an enforceable direction during the ordinance's remaining life because expiration neither restores lost review

time nor requires the City and City Utilities to accept and process the Project's then-pending submissions under otherwise-valid law.

135. Each day Ordinance 28306 remains operative continues the present restraint and further consumes the finite development and review sequence for which NSI A1 seeks relief.

136. The City's combination of required preliminary review, written use guidance, acceptance and departmental evaluation of the submission, and subsequent restriction of both formal processing and meaningful preliminary input has impaired the very review sequence it directed NSI A1 to follow.

137. NSI A1 alleges that allowing the City to use that induced procedural position to foreclose ordinary review would cause additional reliance injury and manifest injustice.

138. The claimed reliance concerns acts and expenditures after the particular representations on which NSI A1 relied.

139. The claim does not rest on a final permit, a promise that no new valid law could be enacted, or a right to use the property contrary to PD 251.

COUNT I — DECLARATORY JUDGMENT: ORDINANCE 28306 IS VOID

140. NSI A1 incorporates the preceding allegations as though fully stated here.

141. A justiciable controversy exists concerning whether Ordinance 28306 is a zoning regulation or restriction in substance and whether it became effective without the procedures required by §§ 89.050–.060, Chapter 89, and the City's implementing land-development provisions.

142. Ordinance 28306 regulates land use and development by defining a particular use and suspending all ordinary application intake and processing for that use.

143. It is zoning in substance notwithstanding its temporary duration or police-power recitals.

144. Because the City did not strictly comply with the mandatory enactment procedures applicable to zoning legislation, Ordinance 28306 is invalid and void ab initio.

145. NSI A1 is entitled to a declaration resolving that controversy.

146. This count does not seek an application-level determination that the Project satisfies every provision of PD 251 or any other code.

**COUNT II — DECLARATORY JUDGMENT: FAILURE TO COMPLY WITH
CHARTER §§ 2.12 AND 2.16**

147. NSI A1 incorporates the preceding allegations as though fully stated here.

148. An actual and present controversy exists concerning whether the hybrid enactment the City is enforcing acquired legal force under Charter §§ 2.12 and 2.16.

149. If Ordinance 28306 is a resolution as its operative clause and official filing notation state, it cannot enact the generally applicable legislative land-use and utility moratorium that Charter § 2.16 requires the Council to adopt by ordinance.

150. If Ordinance 28306 is an ordinance as its heading and effect state, it fails to contain the exact ‘BE IT ORDAINED’ enacting clause that Charter § 2.12 commands every ordinance to contain.

151. The ordinance form is mandatory here because Charter §§ 2.12 and 2.16, read together, make that prescribed form the manner by which the Council exercises the relevant legislative power rather than imposing a collateral requirement after the power has been exercised.

152. The defects here identify the measure as a different species of governmental action in both its operative clause and the Clerk’s filing notation.

153. The directory-statute rule, does not authorize substantial compliance because the Charter expressly permits the relevant action only by ordinance and prescribes the exact clause by which an ordinance is enacted.

154. Missouri's exact-enacting-clause decisions likewise reject substantial compliance when organic law supplies both the requirement and its precise wording.

155. Ordinance 28306 therefore fails under either legal classification and is void and without force against NSI A1 or the Project.

156. NSI A1 is entitled to a declaration resolving that controversy.

COUNT III — PRELIMINARY AND PERMANENT INJUNCTIVE RELIEF

157. NSI A1 incorporates the preceding allegations as though fully stated here.

158. NSI A1 is likely to prevail on its facial challenge because Ordinance 28306 operates as interim zoning and the presently available legislative record does not show strict compliance with Chapter 89.

159. Absent interim relief, the City will continue using Ordinance 28306 to deny application intake and ordinary processing, consuming a finite project and review window and causing injury that cannot be fully repaired by money damages.

160. The balance of harms favors a narrow injunction because requiring ordinary acceptance and processing does not approve the Project, guarantee electric capacity, or disable any otherwise-valid health, safety, building, land-development, or utility standard.

161. The public interest favors adherence to the notice and hearing protections the General Assembly prescribed for zoning legislation, while preserving full merits review of complete applications under valid law.

162. NSI A1 is willing to post security in the amount the Court directs under Rule 92.02(d) and § 526.070, RSMo.

163. NSI A1 is independently likely to prevail on its Charter claim because the published instrument facially fails the legal requirements applicable whether it is classified as an ordinance or a resolution.

164. The represented predevelopment route and the approaching calendar expiration do not supply equivalent relief because neither compels the City or City Utilities to resume actual project-specific processing during the remaining operative period.

165. Alternatively, the Court may preserve ordinary preliminary review on the construction and equitable grounds in Counts V and VI even if it declines to invalidate Ordinance 28306.

166. The same requirement of notice, proof of irreparable injury, careful limitation of relief, and security applies.

COUNT IV — VIOLATION OF THE MISSOURI SUNSHINE LAW

167. NSI A1 incorporates the preceding allegations as though fully stated here.

168. The City is a public governmental body subject to Chapter 610, and NSI A1 is an aggrieved requester entitled to judicial enforcement under § 610.027.1 in the Circuit Court for the county where the City maintains its principal place of business.

169. The requested records were made, maintained, or retained by or for the City in connection with official business and are public records to the extent not subject to a specifically identified statutory exception.

170. The City violated § 610.023.2 by failing to make all nonexempt responsive public records available for inspection and copying.

171. The City violated § 610.023.3 by failing to continue acting diligently and as soon as possible, failing to provide a detailed explanation for its continuing delay, and failing to state a new earliest date on which the remaining records would be available.

172. Section 610.023.3 permits a public governmental body to revise an anticipated production date for reasonable cause, but it remains obligated to act diligently, explain the further delay, and provide a new reasonable earliest date.

173. Section 610.026.2 does not excuse the City's nonproduction because NSI A1 accepted the quoted charge and requested payment instructions, the City supplied no practical means of payment, the July 2 communication omitted the mandatory withdrawal notice, and the ninety-day period had not elapsed as of September 11, 2026.

174. To the extent the City has denied or withheld any responsive record, the City also violated § 610.023.4 by failing, after NSI A1's written request, to provide a written statement identifying the specific statutory basis for that denial or withholding.

175. The City's violations were knowing because the Request expressly advised the City of § 610.023's requirements, the City's compliance specialist acknowledged and partially processed the Request, the City knew that NSI A1 accepted the quoted charge, and the City nevertheless ceased communicating without completing production or supplying the explanation and date the statute requires.

176. Alternatively and on information and belief, the City acted purposefully because its course of conduct in inviting payment, receiving NSI A1's acceptance, supplying no means to pay, ceasing all updates, and leaving moratorium-specific records unproduced while the moratorium remained operative constituted a conscious design to violate §§ 610.023.2–.3 by delaying NSI A1's access with awareness of the probable consequences.

177. The City's continuing violation deprives NSI A1 of time-sensitive access that cannot be restored after the governmental action and development delay to which the records relate have concluded.

178. Sections 610.027.1 and 610.030 authorize the Court to enforce the City's obligations and issue declaratory and injunctive relief compelling compliance.

**COUNT V — ALTERNATIVE DECLARATORY AND INJUNCTIVE RELIEF
CONCERNING THE SCOPE OF ORDINANCE 28306**

179. NSI A1 incorporates the preceding factual allegations.

180. This count is pleaded alternatively to Counts I and II and assumes the ordinance's validity solely for purposes of determining its scope.

181. An actual controversy exists over whether the City may invoke Section 2 to prevent Project-specific work within the preliminary process that the City represented could continue during the administrative delay.

182. The July and August communications and the resulting inability to obtain ordinary preliminary input concern an existing Project and present requests for review.

183. Section 527.020, RSMo, and Rule 87 authorize a declaration concerning construction of a municipal ordinance affecting NSI A1's rights and legal relations.

184. The City's May 26 acknowledgment, June 1 scheduling notice, June 2 mandatory-process direction, and departmental summary establish that NSI A1 entered and participated in an organized City review process before enactment.

185. The absence of a fee at the preliminary stage does not negate those facts.

186. Those facts do not, without the additional SPP-study, fee, and large-load-application predicates, establish the limited continuation exception in Section 2.

187. That exception would permit only the processing necessary to fulfill the specified SPP study requirements, not unrestricted Project approval.

188. NSI A1 instead contends that Section 2 does not prohibit ordinary preliminary activities insofar as they are part of the predevelopment process that the City itself has distinguished from suspended formal application processing.

189. The requested activities include receiving and considering supplemental preliminary materials, identifying submission requirements and known critical issues, and providing the ordinary preliminary interdepartmental feedback associated with PREDEV2026-00192.

190. The alternative electricity-consumption and floor-area tests demonstrate why a moratorium-specific classification does not itself resolve the Project's permitted-use classification under PD 251.

191. NSI A1 seeks construction of Section 2's processing prohibition together with Section 5's requirement of compliance with "all existing and foreseeable planned city regulations," as those provisions affect the preliminary activities and limited processing relief it has requested.

192. NSI A1 contends that Section 5 requires identification of the particular foreseeable planned regulations invoked and their application to the requested limited review, rather than reliance on the mere possibility of future regulation.

193. The City's direction to pursue Section 5 relief while restricting the project-specific input needed to address its infrastructure criteria creates a present uncertainty concerning the standards and process available to NSI A1.

194. The requirement of fair notice and protection against arbitrary enforcement supports a reasonable construction of these provisions that identifies the permitted activities and applicable standards, while recognizing the greater tolerance afforded civil regulation.

195. NSI A1 does not allege that breadth alone establishes unconstitutional vagueness or that uncertainty involving hypothetical small-office installations defeats the ordinance's independent electrical-demand criterion as applied to the Project.

196. The declaration sought under this count would resolve NSI A1's actual processing dispute while preserving the Council's lawful discretion, the remaining Section 5 criteria, and the City's authority to make subsequent merits determinations.

197. NSI A1 seeks a declaration identifying the activities outside the prohibition and an injunction preventing reliance on Ordinance 28306 to obstruct them.

198. Relief would preserve the City's authority to require information, apply lawful standards, and make subsequent determinations; it would not require a favorable recommendation, final permit, commencement of an SPP study, or provision of utility capacity.

199. The Court can decide that present construction dispute without granting a development application.

200. This count does not ask the Court to bypass an available administrative appeal from a completed zoning decision.

201. If a particular issue requires such a determination or appeal, NSI A1 requests preservation of the process necessary to obtain it.

202. If the Court construes Section 2 to prohibit the requested preliminary activities, NSI A1 preserves its independent facial challenges and the equitable ground in Count VI.

203. These alternative theories do not concede that the City may treat the same review activity as outside the moratorium when promising assistance and inside it when refusing the corresponding work.

COUNT VI — ALTERNATIVE DECLARATORY AND INJUNCTIVE RELIEF BASED ON EQUITABLE ESTOPPEL

204. NSI A1 incorporates the preceding factual allegations and pleads equitable estoppel as a ground for declaratory and injunctive relief against the City's present enforcement positions, alternatively to its claims of invalid enactment.

205. This count does not seek damages for an alleged municipal promise or enforcement of an unwritten municipal contract.

206. The City, through the officials identified above, affirmatively confirmed that PD 251 permitted the described use, accepted the numbered preliminary application, directed a mandatory review sequence, evaluated the later disclosed Project through identified departments, and subsequently represented that preliminary work could continue during the pause.

207. NSI A1 acted on those representations by pursuing the directed review sequence and incurring the planning, design, professional, and development expenses alleged above after the relevant assurances.

208. NSI A1 alleges that this reliance concerned lawful review of the disclosed Project under existing PD 251, rather than guaranteed approval of all technical details or a future rezoning.

209. The City thereafter asserted a categorical contrary use position and relied on the absence of a later formal application to deny meaningful access to review, while the preliminary route it continued to recommend did not provide the corresponding Project-specific input.

210. NSI A1 alleges that allowing those inconsistent positions would prejudice the procedural and financial position the City's earlier conduct induced.

211. The alleged affirmative misconduct is the misleading administration of that required sequence: directing and accepting participation as the means to advance the disclosed Project, then invoking the resulting procedural posture to deny advancement while representing that an available preliminary path could supply work that was in fact withheld.

212. NSI A1 will prove this allegation through applicable evidence, and disclosures that will proceed through the course of discovery in this matter, of which said information/evidence is predominantly and/or exclusively within the control of the City.

213. These allegations invoke facially inconsistent conduct, reliance, injury, affirmative-misconduct, and exceptional-circumstances.

214. NSI A1 alleges that narrowly preserving lawful review is necessary to prevent manifest injustice and accepts the burden of proving the required elements by clear and satisfactory evidence.

215. NSI A1 seeks the more limited remedy of access to review while preserving the City's lawful authority over the merits.

216. The preliminary-review reservations and the City's asserted differences between the early description and later technical submissions remain material to reasonable reliance.

217. NSI A1 does not ask the Court to convert qualified comments into a final approval or to enforce an unauthorized use.

218. NSI A1 requests a declaration and injunction preventing the City from using its inconsistent procedural and use-classification positions to foreclose ordinary review of the same disclosed Project.

219. Any estoppel should extend only as far as the authorized representations and proven reliance warrant, and should permit the City to address material Project changes and applicable legal requirements through an ordinary determination subject to available review.

220. This relief would not freeze municipal police power, compel rezoning or utility service, or exempt the Project from otherwise-valid safety and development standards.

221. If the estoppel elements are not proved, the Court may deny this alternative ground without rejecting the independent facial claims or the construction claim in Count V.

PRAYER FOR RELIEF

222. Plaintiff requests that the Court declare that Special Ordinance 28306 is zoning legislation in substance and is invalid and void for failure to comply with the mandatory procedures of Chapter 89.

223. Plaintiff requests that the Court declare that Ordinance 28306 was not validly enacted under Charter §§ 2.12 and 2.16.

224. Plaintiff requests that the Court after notice and hearing, preliminarily and permanently enjoin the City and those bound by the injunction from applying or enforcing Ordinance 28306 to refuse acceptance or ordinary processing of complete Project submissions.

225. Plaintiff requests that the Court clarify that the injunction does not approve the Project, guarantee utility service or capacity, waive completeness requirements or fees, adjudicate the ultimate interpretation of PD 251, or prevent enforcement of otherwise-valid law.

226. Plaintiff requests that the Court declare that the City violated §§ 610.023.2–.4 and that Request No. R025670-062426 remains active and was not withdrawn under § 610.026.2.

227. Plaintiff requests that the Court enjoin the City to provide a lawful invoice or payment mechanism, complete its searches diligently, produce all nonexempt records and

reasonably segregable portions on a Court-ordered schedule, and identify the statutory basis for any withholding.

228. Plaintiff requests that the Court order preservation of responsive records as required by § 610.027.1.

229. Plaintiff requests that the Court award the civil penalty, reasonable attorney fees, and costs available under § 610.027.3 or .4 according to the state of mind proved.

230. Plaintiff requests that the Court grant such other and further relief as the Court deems just and proper.

231. In addition and alternatively as to Counts V and VI, Plaintiff requests a declaration identifying the ordinary predevelopment activities that Section 2 does not prohibit, and an injunction preventing reliance on Ordinance 28306 to obstruct those activities.

232. In addition and alternatively as to Counts V and VI, Plaintiff requests a declaration and narrowly tailored injunction, to the extent supported by the required estoppel proof, preventing the City from using its inconsistent procedural and use-classification positions to foreclose ordinary review of the same disclosed Project, while preserving lawful standards, merits determinations, and available administrative review.

233. Alternatively under Count V, Plaintiff requests a declaration identifying the standards governing consideration of its limited Section 5 processing request, including identification of the particular foreseeable planned regulations invoked, while preserving the Council's lawful discretion and the remaining statutory criteria.

Respectfully submitted,

THE LAW OFFICE OF CHAD G. MANN, LLC



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ATTORNEY FOR PLAINTIFF

VERIFICATION

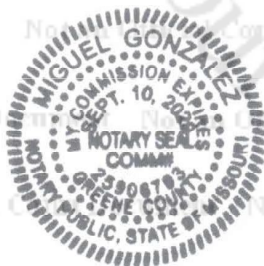
STATE OF MISSOURI)

COUNTY OF Greene) ss.

I, Trent Overhue, as an authorized representative of NSI A1, LLC, being first duly sworn, state that I have read the foregoing Verified Petition; that the factual allegations stated on my personal knowledge are true and correct; and that the allegations stated on information and belief are believed by me to be true and correct.


Trent Overhue, as authorized representative
of NSI A1, LLC

SUBSCRIBED AND SWORN TO before me this 16th day of September, 2026.




Notary Public